

		any pleading”]; see also Code Civ. Proc., § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].) A motion to file an amended pleading must be accompanied by a copy of the <i>proposed amended pleading</i> and state what allegations are proposed to be deleted, or added, if any, and where, by page, paragraph, and line number. (Cal. R. Court 3.1324(a).) It also must include a supporting declaration explaining: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. R. Court 3.1324(b).) This motion is denied without prejudice to Plaintiff filing a proper motion for leave to amend. Defendant shall give notice of the ruling.
4	Deharo vs. Kola Hotel, LLC 2024-01419171	Motion to Compel Deposition (Oral or Written) Plaintiff Almadelia Deharo’s (“Plaintiff”) motion to compel the deposition of Defendant Vagabond Inn Corporation’s (“Defendant”) person(s) most qualified is granted in part and denied in part. The request for an order compelling the deposition of Defendant’s person most qualified, with production of documents, is denied as moot, because Defendant produced its witnesses for deposition after this motion was filed, but before this motion was heard. To the extent Plaintiff is not satisfied with the answers or objections given at the deposition(s), her remedy is to bring a motion to compel under CCP section 2025.480. The Court cannot provide relief that was not requested in the notice of <i>this</i> motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) The request for an award of sanctions is granted. (Code Civ. Proc., § 2025.410, subd. (d).) The Court finds Plaintiff reasonably waited for several months for Defendant to produce its witnesses before bringing this motion; and, that Plaintiff’s counsel made several attempts to informally resolve this motion before it was filed. In connection with the motion, Plaintiff is awarded reasonable sanctions in the amount of \$3,000 against Defendant Vagabond Inn Corporation. The sanctions are payable within 30 days to The Garza Firm. Plaintiff is ordered to give notice of the ruling.